

be best illustrated by an example. Had a feoffment been made to A. for life to his own use, with remainder to B. in fee to the use of C., and then A. had enfeoffed D. in fee, in this case, though D. had the land by the feoffment which then operated as a tortious conveyance, yet, as he did not take the indentical estate in the land to which the use in favour of C. was attached, he was not bound by C.'s equitable claim. And, by the same rule, neither tenant by the *curtesy*, nor tenant in *dower*, nor tenant by *elegit*, was liable to the execution of the use, for their interests were new and original estates, and could not be said to have been impressed with the use. So the lord who was *in* by *escheat*, a *disseisor*, *abator*, and *intruder*, were not amenable to the *subpœna*; for the first claimed by title paramount to the creation of the use; and the three last were seised of a tortious estate, and held adversely to the feoffee to uses.

Privity as regards the cestui que use. — With respect to the *cestui que use*, the principle upon which his whole estate depended was also what in legal language was denominated *privity*. Thus, on the death of the original *cestui que use*, the right to sue the *subpœna* was held to descend indeed to the *heir* on the ground of *hæres eadem persona cum antecessore*; but the wife of the *cestui que use*, or the husband of a feme *cestui que use*, and a judgment creditor were not admitted to the same privilege; for their respective claims were founded not on privity with the person of the *cestui que use*, but on the course of law. And for the like reason a use was not assets, was not subject to forfeiture, and on failure of heirs in the inheritable line did not escheat to the lord.

Special trust defined. — The *special* trust (for hitherto we have spoken of the simple trust only) was where the conveyance to the trustee was to answer some particular and specific purpose, as upon trust to reconvey in order to change the line of *descent, upon trust to sell for payment of debts, &c. In the special trust the duty of the trustee was not, as in the simple trust, of a mere passive description, but imposed upon him the obligation of exerting himself in some active character for the accomplishment of